

		default and is accompanied by a copy of the proposed answer. The motion is supported by a declaration from Defendant explaining that default was entered as a result of his lack of understanding that he was properly served with process. The Default entered against Defendant Miller (ROA 15) is, hereby, vacated. Defendant shall file and serve its answer by <u>5/28/26</u>. To the extent Defendant seeks leave to file a special motion to strike, the motion shall be due by <u>06/01/26</u>. (Code Civ. Proc., § 425.16, subd. (f).) Defendant shall give notice of the ruling. Case Management Conference – Continued to 6-15-26 at 9:00 a.m.
3	Bowie vs. NuEyes Technologies, Inc. 2025-01501793	Motion to Strike Answer Continued to 07/13/2026
4	Broerman vs. General Motors, LLC 2024-01407671	1. Motion for Attorney Fees 2. Motion to Strike or Tax Costs 3. Order to Show Cause re: Dismissal on Settled Case Continued to 07/20/2026
5	California Solar Innovators, Inc. vs. Green Solar 2022-121, LLC 2025-01500843	Off Calendar
6	Coffman vs. Antonio 2025-0140510	Motion to Appoint Appraiser to Determine Fair Market Value The motion of plaintiff Rosario A. Coffman, individually and as trustee of the Coffman Revocable Trust dated February 16, 2017, for an order appointing a licensed, disinterested real estate appraiser to determine the fair market value of the property at 239 S. Camellia Street, Anaheim, is DENIED without prejudice for plaintiff to refile at an appropriate later time in the litigation.

As with the motion for an order determining the manner of partition set for hearing concurrently with this motion, the Court must determine the interests of the parties to the property and the equities before it can find that the provisions of the Partition of Real Property Act apply to this action and that the appointment of an appraiser is necessary. Therefore, like the motion for an order determining the manner of partition, this motion must be denied without prejudice.

Motion to Determine Manner of Partition

The motion of plaintiff Rosario A. Coffman, individually and as trustee of the Coffman Revocable Trust dated February 16, 2017, for an order determining the manner of partition is DENIED without prejudice for plaintiff to refile at an appropriate later time in the litigation.

Plaintiff Rosario A. Coffman, individually and as trustee of the Coffman Revocable Trust dated February 16, 2017, moves the Court to determine the manner of partition, i.e., in kind or by sale, as it relates to the property at 239 S. Camellia Street, Anaheim, which is the subject of this action. Defendant and cross-complainant Mario Angelo Antonio oppose the motion, contending that it is premature at this point in the litigation.

Partition is the procedure for segregating and terminating common interests in the same parcel of property. 14859 Moorpark Homeowner's Assn. v. VTR Corp. (1998) Cal.App.4th 63 Cal.App.4th 1396, 1404-1405. The term "partition" may refer to a judicial decree or a voluntary agreement of the parties. Id. at p. 1405.

The process does not involve a transfer of title; the parties already have the title, and their common title is merely being divided. Rancho Santa Margarita v. Vail (1938) 11 Cal.2d 501, 539. A partition segregates and terminates the common interests in a parcel of property, but it does not create or convey new or additional interests. The only result is that the common interests become interests in severalty. Ibid. Ordinarily, in absence of a waiver or estoppel, or other equitable defenses, each cotenant has an "absolute" right to partition the common property. Miller & Starr, Cal. Real Estate 4th ed. 2025), § 11:14.

The parties may enter into a voluntary agreement to partition property, but, as with any contract, the agreement must be clear, specific, and reasonable. See Miller & Starr, Cal. Real Estate 4th ed. 2025), § 11:14. For example, the parties can make a written buy-sell agreement for a partition by appraisal whereby either party can acquire the property of the other cotenant at the appraised value.

Where real property is held by tenants in common who have no mutually binding agreement concerning partition, any cotenant may bring the action, but after January 1, 2023, the action is governed by a separate statutory procedure under the Partition of Real Property Act. Code Civ. Proc. § 874.311. All other partition actions involving real property, including those among tenants in common who have a binding agreement for partition, are governed by the general partition law, which also applies to some actions involving personal property. Code Civ. Proc. § 872.020.

In bringing this motion as well as the concurrently noticed motion for appointment of appraiser, plaintiff contends that the Partition of Real Property Act applies to this action and urges the Court to follow the procedures there. Indeed, in her complaint, she alleges that she and defendant hold ownership interests in the property as tenants and common, each with a 50% interest in the property. (See Complaint, ROA 2, at ¶¶ 18-21.)

Defendant countered the complaint by filing a cross-complaint against plaintiff and another cross-defendant. (ROA 11.) In that cross-complaint, defendant alleges that, after the death of plaintiff's husband, plaintiff quitclaimed 50% of the interest in the property to him in consideration of the help and assistance he gave her husband before his death. (Cross-complaint, ¶ 10.) He further alleges that plaintiff subsequently asked him to help her operate the family business on the premises and promised to leave him her 50% interest in the property if he did so and that she would leave her other children her other assets. (Cross-complaint, ¶¶ 11 and 12.) Defendant alleges that he accepted plaintiff's offer and quit his job in reliance thereon. (Cross-complaint, ¶ 13.) He then alleges that, in spite of their agreement, plaintiff formed a trust and funded it with her 50% interest in the property, although she later promised to take the property out of the trust and convey it to him. (Cross-complaint, ¶¶ 17, 18, 19, and 20.)

The allegations in the cross-complaint suggest that the parties had an agreement for partition of the property or, the very least, that defendant has some equitable defenses to plaintiff's right of partition. Thus, the Court must determine the interests of the parties to the

		property before it determines whether interests of the parties must be determined before the Court determines whether the provisions of the Partition of Real Property Act apply to this action. As such, the motion must be denied (without prejudice for plaintiff to refile at an appropriate later time in the litigation). Plaintiff to give notice.
7	Phillips vs. Newport-Mesa School District 2025-01474929	Motions to Compel Production and Response to Requests for Admissions Plaintiff Trenae Phillips’ motion for order compelling defendant Newport-Mesa School District to provide further responses to requests for production, set one (“RFPs”) is granted in part and denied in part, as set forth below. Plaintiff’s motion to compel defendant Corey Stone to provide further responses to requests for admission, set one (“RFAs”) is granted. Plaintiff is awarded sanctions of \$960 against Defendant Stone. Facts This is an action for injuries resulting from a car accident. Plaintiff alleges that Defendant Corey Stone, while in the course and scope of his employment with Defendant Newport-Mesa School District (“NMSD”) , caused the accident by driving too fast and making an unsafe lane change. [Complaint (ROA #2), ¶¶ MV-2f, GN-1.] On 5/13/25, Plaintiff served the RFPs on NMSD and the RFAs on Stone; Defendants each served responses by email on 7/7/25. [Nunez Decls. (ROA ## 43, 42), ¶¶ 3, 4 and Exs. A and B.] Counsel for the parties communicated back and forth numerous times as part of their meet and confer efforts. [<i>Id.</i>, ¶¶ 5-15 and Exs. C-M.] This included a number of extensions of Plaintiff’s deadline for filing motions to compel from what would have been an 8/25/25 deadline. [<i>See Id.</i>, Exs. D, G, H, L.] Twice these were in terms of a “two week” extension. [<i>Id.</i>, Exs. D, G.] Once it was a date certain [Ex. H]; and the last extension as until two weeks after the promised supplemental responses were served. [<i>Id.</i>, Exs. L and M.] Supplemental responses were not served for the RFPs and RFAs, however, and Plaintiff now moves to compel further responses. [<i>Id.</i>, ¶¶ 15-17.] The motions were filed on 12/19/25. Timeliness of the Motions